

Court No. - 21

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The application filed by the petitioner for sanction of new electric connection has been rejected on the ground that there were dues standing against the company (Venus Sugar Limited) from whom the petitioner had taken the premises on lease.
2. The submission of learned counsel for the petitioner is that the premises in respect of which the petitioner has applied for sanction of new electricity connection is a separate and distinct premises from the one in respect of which electricity dues is being claimed by the respondent-Electricity Department.
3. Shri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department is granted time to clarify whether the premises in respect of which the petitioner has applied for sanction of electric connection is separate and distinct from the one in respect of which the company was having an electricity connection and certain amount is allegedly due against it and also whether the respondent-Electricity Department can claim any right of recovery against other properties of the defaulter-company.
4. List as fresh on 29.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.5.2023

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Court No. - 21

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Short counter affidavit filed on behalf of respondents no.2 and 3 is taken on record.
2. Counsel for the petitioner prays for and is granted time to file rejoinder affidavit.
3. Put up as fresh tomorrow.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.5.2023

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Court No. - 21

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. Short rejoinder affidavit filed today is taken on record.
2. Put as fresh **tomorrow** i.e. 31.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.5.2023

S.P.

Court No. - 21

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The petitioner has applied for sanction of a new electricity connection in a premises being used for running a School. The said premises was taken on lease by the petitioner from Venus Sugar Ltd. It is not disputed before us that the respondent electricity department had a claim in respect of electricity dues pending against Venus Sugar Ltd. The said Company had challenged the claim of the respondent electricity department by filing a writ petition before this Court (Writ No.1432 of 2023) which was disposed of with direction to the respondent electricity department to decide the objection of the Venus Sugar Ltd. treating the same to have been filed under Clause 6.5 of U.P. Electricity Supply Code, 2005. The demand of electricity charges was kept in abeyance pending decision on the objections. It is common ground between the parties that no decision has been taken so far by the respondent electricity department in pursuance of the said direction and the matter is still pending.

2. The respondent electricity department is not sanctioning electricity connection to the petitioner as according to it dues of the lessor against the same premises are outstanding against it.

3. It is the specific case of the petitioner that the open land in respect of which lease was granted to the petitioner is separate and distinct from the premises over which electricity connection was obtained by Venus Sugar Ltd.

4. It is further submitted that as provided under Clause 4.3 (f) (ii) and (iv) of the U.P. Electricity Supply Code, 2005, the petitioner is ready to give undertaking that the dues of lessor will be a charge on the property.

5. Sri Pranjal Mehrotra, learned counsel for the respondent electricity department does not dispute that after obtaining such an undertaking from the petitioner, the interest of the electricity department would be safeguarded.

6. Sri Pranjal Mehrotra also prays for time to file a detailed counter affidavit which is allowed.

7. The moot question before us is whether the premises in respect of which the respondents allege that the electricity dues are to be realized is the same premises, which has been leased out to the petitioner or a separate premises. It is to be decided on basis of pleadings of the parties. Therefore, we post the matter on **10.07.2023** for deciding the said issue .

8. Pending decision on the above issue, we hereby provide that in case, the petitioner gives undertaking to the effect that the alleged outstanding dues of Venus Sugar Ltd. will be first charge on the property leased out to the petitioner, the respondent electricity department will sanction new electricity connection to the petitioner without prejudice to its pleas and contentions herein.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.5.2023
S.P.

Court No. - 3

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

As prayed, list this case on 27.10.2023.

Order Date :- 16.10.2023

vkj

Court No. - 3

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

As prayed, list this case on 16.11.2023 in the top ten cases.

Order Date :- 3.11.2023

vkj

Court No. - 3

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

List this case on 22nd November, 2023 amongst the top ten cases.

Order Date :- 16.11.2023

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Court No. - 3

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Diptiman Singh, Abhijit Chatterji, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Learned counsel for the petitioner has drawn the attention of this Court to the communication dated 24th July, 2023. He submits that Electricity Department has demanded Rs. 19,32,259/- for the installation of electricity through rural feeder.

Learned counsel for the petitioner states that the Electricity Department may give electric connection through an urban feeder as the School of the petitioner is situated in an urban area and runs the same during day time.

Learned counsel for the Electricity Department shall apprise the Court as to what would be the cost for giving connection to the petitioner through urban feeder.

Put up this case on 8th December, 2023 amongst top ten cases.

Order Date :- 22.11.2023

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Court No. - 21

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Abhijit Chatterji, Bidhan Chandra Rai, Diptiman Singh

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Sri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department, has sent illness slip.
2. As prayed by counsel for the petitioner, list on 16.5.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.5.2024

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Court No. - 21

Case :- WRIT - C No. - 17888 of 2023

Petitioner :- M.P.Singh Foundation

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Abhijit Chatterji, Bidhan Chandra Rai, Diptiman Singh

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. It is submitted that in purported compliance of order dated 22.11.2023 an estimate of Rs. 1,80,46,414/- has been provided by the respondent Electricity Department to the petitioner for releasing electricity connection of 100 kVA.
2. Sri Pranjal Mehrotra, learned counsel appearing for respondent Electricity Department states that the estimate is for supplying electricity from independent feeder.
3. Counsel for the petitioner submits that the respondent Electricity Department has so far not issued any order sanctioning the load as is required under law. He submits that only after load is sanctioned and terms and conditions are made known to the petitioner that the respondents have to provide an estimate to the petitioner.
4. Learned counsel for the respondent Electricity Department seeks time to obtain instructions on the said aspect and to explain why the sanction order has not been issued in case the petitioner has already complied with the condition imposed vide order dated 31.05.2023.
5. Accordingly, the matter is adjourned to 29.05.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.5.2024

Ruhi H.